



CASUAL (AWARD) EMPLOYMENT CONTRACT BETWEEN

Manuplex

And

Shane Schleger

This Contract

is made on 27th January 2021

Between

See **Item 1** of the Schedule (**Employer**)

and

See **Item 2** of the Schedule (**You**)

BACKGROUND

- A. The Employer has agreed to employ you and you have agreed to work for the Employer in the position described at **Item 3** of the Schedule.
- B. The Employer and you have agreed to enter into this Contract to record the terms and conditions of your employment.
- C. The Employer acknowledges its obligation to apply the applicable employment protections to you and to abide by the provisions contained in any relevant legislation.

The Employer And You Agree that:

1. DEFINITIONS

Associated Entities has the same meaning as in the *Corporations Act 2001 (Cth)*.

Confidential Information means all the information including trade secrets, Intellectual Property, marketing and business plans, client and supplier lists, computer software applications and programs, business contacts, finance, remuneration details, data concerning the Employer or any of its associated entities or any client of the Employer's, finances, operating margins, prospect's lists, and transactions of the Employer, but does not include information in the public domain otherwise than through a breach of an obligation of confidentiality.

Contract means this employment contract.

Intellectual Property means all form of intellectual property rights throughout the world including but not limited to present and future copyright, registered and unregistered trademarks, patent, design, rights, trade mark, any other intellectual or industrial property rights, discovery, invention, secret process or improvement in procedure of any kind whether arising from statute, under common law or in equity and confidential information including know-how and trade-secrets.

Moral Rights has the meaning given to it in the *Copyright Act 1968 (Cth)* and includes rights of integrity of authorship, rights of attribution of authorship and similar rights that exist or may come to exist anywhere in the world.

The Act means the *Fair Work Act 2009 (Cth)*.

Works means all inventions, policies, practices, designs, drawings, plans, software, hardware, reports, documents, systems, improvements and other materials.

2. COMMENCEMENT AND WARRANTIES

- 2.1 Your date of commencement of employment with the Employer is identified at **Item 4** of the Schedule.
- 2.2 The terms and conditions of your employment will be in accordance with the Contract and, where applicable, the Industrial Instrument as named in **Item 5** of the Schedule (**the Industrial Instrument**), as varied and amended from time to time.
- 2.3 You agree that:
 - (a) you hold the qualifications and have the skills as represented by you to the Employer
 - (b) you have disclosed to the Employer any restraint or restriction which may affect your performance of work
 - (c) you enter into this contract without any form of coercion
 - (d) you are legally entitled to work in Australia, and agree to produce the appropriate documentation where requested by the Employer and
 - (e) you have and will maintain the licences and qualifications necessary to fulfil your role.

3. POSITION AND TITLE

- 3.1 You are employed on a casual basis in the position described at **Item 3** of the Schedule.
- 3.2 You may be required to perform other tasks from time to time, as reasonably requested by the Employer.

4. PRINCIPAL DUTIES

- 4.1 You may be provided with an outline of your duties before or on commencement of your employment. The outline is not intended to be an exhaustive list of the duties you may be required to perform, rather an indication of the kinds of duties that fall within the scope of the position.
- 4.2 You also have general duties to:
 - (a) comply with reasonable directions given to you by the Employer
 - (b) at all times act faithfully, honestly and diligently
 - (c) ensure you are performing solely work related activities in work time
 - (d) exhibit a professional and courteous attitude when dealing with the Employer, its customers, employees, suppliers and other members of the public and
 - (e) act in the Employer's best interests at all times.

5. EMPLOYER POLICIES AND PROCEDURES

You agree that:

- (a) you will comply with all the Employer's policies and procedures, as amended from time to time at the sole discretion of the Employer
- (b) the specific detail of the Employer's policies do not form a term of your contract and

- (c) failure to comply with the Employer's policies may result in disciplinary action, up to and including dismissal.

6. PLACE OF EMPLOYMENT

- 6.1 The Employer's current primary business location is described in **Item 6** of the Schedule.
- 6.2 You will be required to travel to and work at client and prospective client sites as reasonably necessary for the performance of your duties.

7. HOURS OF WORK

- 7.1 The business' normal span of hours of operation are outlined at **Item 7** of the Schedule.
- 7.2 You are employed as a casual employee and are required to perform the hours of work allocated by the Employer from time to time.
- 7.3 The Employer will give you reasonable notice of when you are required to work in accordance with any requirements under the Industrial Instrument. The Employer does not guarantee to provide you with a minimum or maximum amount of work.
- 7.4 Your maximum ordinary hours per week as a casual employee will be in accordance with the applicable Industrial Instrument. You may also be required to work reasonable additional hours.

8. TIME RECORDING

- 8.1 You are required to complete regular time recordings as directed by management.
- 8.2 You are responsible for the completion of your own time record. Completing time records on behalf of another employee or permitting another employee to do so on your behalf, may result in disciplinary action, up to and including dismissal.

9. REMUNERATION

- 9.1 Your pay is set out at **Item 8** of the Schedule.
- 9.2 The rate of pay is inclusive of the casual loading required by the Industrial Instrument. The casual loading is paid to you in satisfaction of entitlements not payable to casual employees under the National Employment Standards, including to the extent permissible paid personal/carer's leave, paid annual leave and public holidays.
- 9.3 Your pay is inclusive of any and all penalties, allowances, overtime and loadings which may otherwise be payable.
- 9.4 Where your pay exceeds any legislative and Industrial Instrument minimum entitlements, any amount paid in excess of these minimum entitlements may be used to offset any entitlement that may otherwise have been applicable.
- 9.5 In the event that a finding or determination is made that you are not a casual employee by a court, tribunal or governmental authority, to the extent permissible by law, the Employer reserves the right to recover any casual loading paid to you.
- 9.6 The Employer will make Superannuation contributions on your behalf in accordance with legislation.

10. ANNUAL LEAVE

You are not entitled to annual leave due to your casual employment status.

11. LONG SERVICE LEAVE

Long service leave will accrue in accordance with the relevant legislation.

12. PERSONAL/CARER'S LEAVE

You are not entitled to paid personal/carer's leave due to your casual employment status.

13. OTHER LEAVE

All other leave, including compassionate leave, parental leave and community service leave, will be provided to you in accordance with the Employer's policy and/or the Act, whichever is more generous.

14. PUBLIC HOLIDAYS

14.1 You are entitled to be absent from work on a day or part day that is a public holiday in accordance with the Act, unless reasonably required to work by the Employer.

14.2 As a casual employee, any such absence will be unpaid, unless reasonably required to work by the Employer.

15. DISCRETIONARY PAYMENTS

15.1 The Employer may from time to time elect to pay a discretionary payment such as an incentive based payment upon various considerations, including the profitability and future forecasts of the business and your performance.

15.2 Any payments made will be entirely discretionary and the Employer reserves the right to vary, alter or withdraw its arrangements without notice.

15.3 It is a condition of any arrangement that you are employed by the Employer at the time any payment falls due.

16. COMPANY MOTOR VEHICLE

16.1 You may, from time to time, be required to use a company pool vehicle to enable you to efficiently perform your duties. This vehicle is provided solely for work-related use.

16.2 The continued provision of a company motor vehicle is conditional upon you at all times holding a valid driver's licence.

16.3 The type of company motor vehicle provided is at the discretion of management, and may be swapped at any time in accordance with the Employer's operational requirements.

16.4 This motor vehicle must be returned to the Employer when not used for work purposes, unless otherwise agreed.

16.5 Additional rules regarding vehicles and driving are set out in the Handbook which you are expected to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

17. COMPANY PROPERTY

17.1 You may be provided with company property in order to complete your duties as directed by the Employer.

17.2 This property may only be used for business purposes. Reasonable personal use is only permitted where specifically authorised by the Employer.

17.3 The use of the company property is subject to the terms and conditions contained within the Handbook.

18. CONFIDENTIAL INFORMATION

You agree at all times during and after your employment with the Employer:

- (a) to refrain from directly or indirectly disclosing to a third party Confidential Information except in the proper course of carrying out your duties
- (b) not to use the Confidential Information for any purpose other than for the benefit of the Employer
- (c) to keep confidential all Employer Confidential Information and
- (d) to comply with the terms of this Contract unless otherwise required by applicable laws or regulations.

19. INTELLECTUAL PROPERTY

- 19.1 All Intellectual Property rights arising from any Works created or developed by you in the course of your employment (whether alone or with others) will belong to the Employer and you agree to immediately disclose to the Employer all such Works.
- 19.2 You agree that all existing Intellectual Property rights, title and interest in all Works created or developed by you in the course of your employment (whether alone or with others) are vested in the Employer and upon their creation, all such rights will vest in the Employer. You agree to execute all documents and do all acts required to secure any Intellectual Property rights for the Employer.
- 19.3 For the benefit of the Employer, you consent to any and all acts or omissions (whether occurring before or after this consent is given) in relation to all Works made or to be made by you in the course of your employment which might otherwise infringe your Moral Rights in those Works.
- 19.4 You warrant that you have consented without coercion or without relying on any representations other than those set out in this contract.

20. NON-DISPARAGEMENT

You must not at any time, either during your employment, or at any time after termination, disparage or otherwise make any statement, or permit or authorise any statement to be made, which is calculated or reasonably likely to damage the reputation or cause other damage to the Employer or any Associated Entity, or any of their respective employees or officers.

21. TERMINATION OF EMPLOYMENT

- 21.1 At any time during the operation of the Contract, either party may terminate your employment by providing one hour's verbal or written notice of termination or one hour's pay in lieu of notice.
- 21.2 On termination of employment for any reason, you must immediately return to the Employer all property, documents and items relating to the business of the Employer which you have in your possession or control. This includes, but is not limited to, any car, equipment, papers, keys, reports, computers, information, programs, records and documents, intellectual property and other information, in whatever form, relating in any way to the Employer or its clients.
- 21.3 On termination of employment for any reason, you must also irretrievably delete any Confidential Information stored on any computer, magnetic or optical disk or memory, and all matter derived from those sources in your possession, custody, care or control outside the Employer's premises.

22. REDUNDANCY

If your position is made redundant, you shall not be entitled to any payment except as required under the Act.

23. ASSIGNMENT

23.1 You may not assign or transfer the rights and benefits under this contract.

23.2 The Employer may assign its rights and obligations under the Contract to any person, business, company or entity.

24. GOVERNING LAW

The Contract shall be governed by the jurisdiction of the courts in the State or Territory as described at **Item 9** of the Schedule.

25. VARIATION OF TERMS

The terms of the Contract may be varied from time to time by mutual agreement in writing between the parties.

26. SEVERABILITY

If any of the terms and conditions of the Contract are void, or become voidable by reason of any statute or rule of law then that term or condition shall be severed from the Contract without affecting the enforceability of the remaining terms and conditions.

27. ENTIRE AGREEMENT

The contents of the Contract constitute the entire agreement between you and the Employer. Any previous agreements, understandings, and negotiations on this subject matter cease to have effect.

28. FAIR WORK INFORMATION STATEMENT

By signing the Contract you acknowledge that the Employer has provided you with a copy of the Fair Work Information Statement.

SIGNED BY AN AUTHORISED OFFICER OF THE EMPLOYER


.....
Authorised Officer

Matthew Jurkic
.....
Title of Authorised Officer


.....
Witness

Renae Ison
.....
Name of Witness (printed)

I, Shane Schleger agree to the terms and conditions of this contract and the attached schedule

.....
Shane Schleger

.....
Witness

.....
Date

.....
Name of Witness (printed)

SCHEDULE

Item 1	Employer name and details	Manuplex Labour Pty Ltd trading as Manuplex ABN: 12 634 089 786 Address: 88 Hollingsworth Street, Kawana QLD 4701
Item 2	Your name and details	Shane Schleger
Item 3	Position	Supervisor
Item 4	Commencement date	To be confirmed
Item 5	The Industrial Instrument	Black Coal Mining Industry Award 2010
Item 6	Location	<u>Business primary location</u> 88 Hollingsworth Street, Kawana QLD 4701 <u>Your location of work</u> Aquilla Mine Site.
Item 7	Business normal hours of operation	Monday to Sunday 12.00am to 11.59pm
Item 8	Pay	<u>On-site all-inclusive rate of pay</u> \$ 62.35 per hour exclusive of superannuation <u>Incentive Payments</u> Allowance - \$ 8.00 per hour worked paid weekly Retention - \$ 4.00 per hours worked paid 6 monthly
Item 9	Governing Law	Queensland